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Information handling, modelling and forward planning

Topic	What students need to learn:
11 Information handling, modelling and forward planning	11.3 - The importance, implications and ways of protecting the intellectual property rights of designers, inventors and companies: *a) patents* *b) copyrights* *c) design rights* *d) trademarks*

Commercial Protection

Developing new products is expensive and time consuming. A new product may feature design innovations in the way it has been;

- *Manufactured*
- *The materials used or*
- *The way it looks*

These innovations are known as ***intellectual property***. Protecting ***intellectual property*** is important to ensure that rivals cannot simply replicate your product.

Intellectual Property Rights



- **Intellectual Property (IP)** is an idea that is turned into physical creation that did not already exist *(e.g. a book, a film, camera lens mounting system, handbag design or a car name badge).*
- Ideas alone do not count as IP – a physical format of some kind is compulsory.
- Uniqueness is essential when seeking to give IP the legal protection that is afforded by **intellectual property rights (IPR).**

Intellectual Property Rights

- Some rights are ***automatically*** endowed when work is created **(copyright)**; others have to be ***applied for*** **(a patent)**.
- IP laws vary from country to country and there are various rules governing applications.

Patents

Patents can be used to protect technical innovations.

These may be *new manufacturing processes, new products or new features in products*.

But they MUST genuinely be *novel, be non-obvious, show inventiveness and have use*.

Designing a tennis racket with a slightly different shaped head is NOT likely to be patentable.

However, fitting it with a genuinely novel device to maintain string tension might be.

Patents

Holding a patent helps to prevent others from directly copying your innovation and allows you to license your idea for free.

While you may find yourself the inventor of a newly patented technology, you may also want to use a new technology, process or material that is protected by someone else's patent.

Patents

In this case you could either enter negotiation with the inventors and strike a deal to use their technology, or try to achieve the same results yourself but tackling the problem from a different angle to avoid the patent.

Patents

Patents are normally region-specific and must be filed with a regional patent office – such as in Europe or the USA.

If granted, they will apply in that region only.

This will protect your rights over your innovation for up to 20 years.

It is however, important not to disclose your idea before filing, as once it is in the public domain the idea can no longer be patented and anyone will be free to use it.

Design Rights

Design rights are similar to ***patents*** but are focused on how a product looks.

An example might be the classic glass Coca-Cola bottle, which as a highly distinctive shape.

Although this does not necessarily improve its function as a bottle to hold a soft drink.



Coca-Cola, classic contour bottle (1916)

Trademark

A ***trademark*** is conventionally your company's name, logo, brand or slogan.

So the ***Nike swoosh*** and ***'just do it'*** slogan are trademarks and have been registered to avoid unauthorised use.



Trademark symbol



JUST DO IT.

Copyright

Copyright is a law that gives the owner of a work (for example, a book, movie, picture, song or website) the right to say how other people can use it.

Copyright laws make it easier for authors to make money by selling their works.

It helps protect authors from having their work re-copied without permission and/or re-copying their works for commercial purpose.



Copyright symbol

Copyright

With copyright, a work can only be copied if the owner gives permission. If someone copies a work without permission, the owner can say they infringed their copyright. When this happens, the owner may sue for the amount that should have been paid. Most cases are handled by civil law. In more serious cases, a person who copies a work that is protected under copyright could be arrested, fined or even go to prison. Commonly, the copy-right law will protect the authors and their heirs from 50 to 100 years since the first day of the authors' deaths.